TENTATIVE RULINGS

LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: June 24, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at **https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings** and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at https://www.occourts.org/media-relations/civil.html.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Privately_Retained_Court_Reporter_Policy.pdf.

1	**Sunstate Equipment Co., LLC vs. Treni Cole Builders, Inc.** **30-2025-01451346**	Case Management Conference The Case Management Conference is CONTINUED to October 15, 2026, at 9:00 a.m. in Department N15. Motion to Set Aside Entry of Default Cross-Defendant Jonathan Mejia's Motion to Set Aside Default Judgment is CONTINUED to August 4, 2026 at 9:00 a.m. in Department N15. Cross-Defendant Jonathan Mejia is ORDERED to file and serve supplemental motion papers that 1) include a proposed answer or other pleading responsive to the Cross-Complaint, and/or 2) an affidavit or declaration stating under oath that Cross-Defendant Jonathan Mejia lacked actual notice of the Summons and Cross-Complaint and that any lack of notice was not caused by his avoidance of service or inexcusable neglect, no later than July 10, 2026. Cross-Defendant Jonathan Mejia is ORDERED to file a proof of service showing that he has served all supplemental motion papers on all parties that have appeared in this action, including Defendant and Cross-Complainant Treni Cole Builders, Inc. or Plaintiffs T.H. and C.K. The parties shall file and serve any opposition or reply papers pursuant to Civil Procedure Code section 1005(b). Pending Motion Cross-Defendant Jonathan Mejia moves to set aside the default entered against him on February 17, 2026. (See ROA #56.) Standard to Set Aside Entry of Default The Civil Procedure Code grants the court discretion to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).)

"Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233, superseded by statute, on other grounds, as discussed in *Tackett v. City of Huntington Beach* (1994) 22 Cal.App.4th 60, 64.) "Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted." (*Ibid*.)

Nonetheless, the requirement that the judgment or order have been entered through "inadvertence, surprise, excusable neglect, or mistake" is "not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category." (*In re Wolper's Estate* (1956) 146 Cal.App.2d 249, 251.)

As the Court of Appeal has explained:

> It is obvious that a party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence.

(*Hewins v. Walbeck* (1943) 60 Cal.App.2d 603, 609-610.)

Thus, in a motion to set aside a default judgment or order under Section 473(b), the initial burden is on the moving party to prove mistake, inadvertence, surprise, or excusable neglect by a "preponderance of the evidence." (*Kendall v. Baker* (1988) 197 Cal.App.3d 619, 624.)

In addition, an "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, *otherwise the application shall not be granted* . . . ." (Code Civ. Proc., § 473, subd. (b), italics added.)

		Civil Procedure Code section 473.5 provides another basis for relief from default. That provision states: When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. (Code Civ. Proc., § 473.5, subd. (a).) A motion brought pursuant to Section 473.5 also must be "accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect" as well as "a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc., § 473.5, subd. (b).) To the extent that Cross-Defendant seeks relief from default pursuant to Section 473(b), Cross-Defendant failed to attach a copy of a proposed answer or other pleading responsive to the Cross-Complaint. To the extent that Cross-Defendant seeks relief from default pursuant to Section 473.5, Cross-Defendant only states in his declaration that there was "improper service of the summons." (See Mot. to Set Aside Def. J., Decl.) Cross-Defendant does not show that he actually lacked notice of the Summons and Cross-Complaint or that any lack of notice was not caused by his avoidance of service or inexcusable neglect. Therefore, the court will continue this hearing to allow Cross-Defendant to supplement the motion papers to cure one or both of these defects. In addition, Cross-Defendant did not file a proof of service showing that he served this motion on Defendant and Cross-Complainant Treni Cole Builders, Inc. or Plaintiffs T.H. and C.K.

		Although Cross-Complainant does not appear to have been prejudiced by this and was able to file an opposition to this motion in a timely manner, in the future, Cross-Defendant must serve any supplemental papers on all parties who have appeared in this action. Cross-Defendant is advised that the court may deny this motion if he fails to supplement the motion papers or fails to serve the supplemental motion papers upon all parties who have appeared in this action. The court clerk shall give notice of this ruling.
2	**Pipkin vs. Pipkin** **30-2024-01430329**	<u>Demurrer</u> Defendant Patricia Pipkin's to Aaron Pipkin's First Amended Complaint is SUSTAINED with 15 days leave to amend as to the 1st through 4th Causes of Action. <u>Pending Motion</u> Defendant Patricia Pipkin demurs to the entire First Amended Complaint for Damages (FAC) and to the 1st through 4th Causes of Action of the FAC filed by Plaintiff Aaron Pipkin. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See *Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ." (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591, citation omitted; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters

		alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (*Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.* (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) In addition, "'[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.'" (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781, quoting *Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403, citations omitted.) <u>1st Cause of Action (Intentional Interference with Expected Inheritance)</u> The courts of this state recognize a civil tort for intentional interference with expected inheritance. (See *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1056 ["[W]e conclude that a court should recognize the tort of IIEI if it is necessary to afford an injured plaintiff a remedy."].) The elements of this claim are: (1) an expectation of receiving an inheritance; (2) intentional interference with that expectancy by a third party;

		(3) the interference was independently wrongful or tortious; (4) there was a reasonable certainty that, but for the interference, the plaintiff would have received the inheritance; and (5) damages. (*Ibid.*) However, a defendant is not liable "when the expectancy is too speculative" or "when an adequate probate remedy exists." (*Id.* at p. 1056.) Expectancy becomes too speculative, for example, when "'no facts [were] alleged . . . showing that the plaintiff had any reasonable expectation of economic advantage which would otherwise have accrued to him . . . .'" (*Id.* at p. 1055, quoting *Blank v. Kirwan* (1985) 39 Cal.3d 311, 330.) The court previously sustained the demurrer to the original Complaint because Plaintiff had failed to allege any facts to establish that the decedent had expressed an intent to bequeath 50% of his estate to Plaintiff and therefore, any expected inheritance was speculative. (See ROA #49 at pp. 2-3.) In his FAC, Plaintiff has now added allegations that: • "Throughout his life, Alfred [decedent] treated both of his sons, Aaron and Tobin, equally. He regularly expressed affection and support for Aaron. Alfred never told Aaron that he intended to disinherit him or reduce his share in any way." (FAC, ¶ 10.) • "Based on Alfred's consistent conduct and expressed intention to treat both sons equally, Plaintiff reasonably expected that Alfred would leave his estate in equal shares to Aaron and Tobin." (FAC, ¶ 11.) However, the allegations that Plaintiff had an expectation of inheritance remain speculative. The FAC contains no allegations showing that the decedent intended to bequeath 50% of his estate to Plaintiff. In fact, Plaintiff attaches a copy of the Alfred L. Pipkin Trust signed by the decedent that expressly disinherits Plaintiff. (See FAC, Exh. 1 at p. 32, ¶ 3.)

		Therefore, the court will sustain the demurrer to the 1st Cause of Action. <u>2nd Cause of Action (Elder Abuse)</u> The Elder Abuse and Dependent Adult Civil Protection Act (Act), Welfare and Institutions Code §§ 15600, *et seq.*, defines "abuse of an elder or dependent adult" to mean any of the following: (1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering. (2) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering. (3) Financial abuse, as defined in Section 15610.30. (Welf. & Inst. Code, § 15610.07, subd. (a).) The rule that "statutory causes of action must be pleaded with particularity" applies to claims made under the Elder Abuse Act. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) A plaintiff "must set forth factual allegations that sufficiently state all required elements of [a] cause of action . . . and, [a]llegations must be factual and specific, not vague or conclusory." (*Rakestraw v. Cal. Physicians' Serv.* (2000) 81 Cal. App. 4th 39, 43.) The court previously sustained the demurrer to the original Complaint because the Complaint did not set forth any factual allegations that showed that the decedent had been abused or how Plaintiff had standing to assert a claim for elder abuse on behalf of the decedent. (See ROA #49 at pp. 3-4.) The FAC adequately addresses the issue of standing by alleging that Plaintiff has standing under Welfare and Institutions Code section 15657.3(d) as an interested person and direct victim of the financial abuse. (See FAC, ¶¶ 12, 63; Welf. & Inst. Code, § 15657.3, subd. (d); Prob. Code, § 48, subd. (a).)

		However, the FAC still does not set forth any allegations showing that the decedent was abused. While the FAC alleges that the decedent was vulnerable to manipulation and that Defendant obtained a transfer of property by deceiving the decedent into believing the diverted funds would satisfy Plaintiff's child support obligations, this transfer did not occur until after decedent's death. Thus, the FAC does not explain how any such actions harmed the decedent (rather than Plaintiff). Thus, the court will sustain the demurrer to the 1st Cause of Action. <u>3rd Cause of Action (Conversion)</u> The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.) "[M]oney cannot be the subject of a conversion action unless a specific sum capable of identification is involved." (*Software Design & Application, Ltd. v. Hoefer & Arnett, Inc.* (1996) 49 Cal.App.4th 472, 485.) "[C]ases recognizing claims for the conversion of money 'typically involve those who have misappropriated, commingled, or misapplied specific funds held for the benefit of others.'" (*Voris v. Lampert* (2019) 7 Cal.5th 1141, 1152, quoting *PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 394.) As a result, "'a mere contractual right of payment, without more, will not suffice' to support a claim for conversion." (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal. App. 4th 221, 233, quoting Farmers Ins. Exchange v. Zerin (1997) 53 Cal.App.4th 445, 452; see also *Vu v. California Commerce Club, Inc.* (1997) 58 Cal.App.4th 229, 235 [where plaintiffs failed to "identify any specific, identifiable sums that the [defendant] took from them[, t]hat rendered the generalized claim for money not actionable

		as conversion."].) The court previously sustained the demurrer to the original Complaint because the Complaint failed to allege that Plaintiff had any ownership or right to possession of any estate property and the Complaint failed to identify the specific property or specific sum capable of identification that was allegedly converted. (See ROA #49 at p. 4.) As explained above, the allegations of the FAC are insufficient to establish that Plaintiff had a reasonable expectation of inheritance and therefore, that Plaintiff had any ownership or right of possession of any estate property. In addition, the FAC fails to identify any specific property that was converted. Accordingly, the court will sustain the demurrer to the 3rd Cause of Action. <u>4th Cause of Action (Unjust Enrichment)</u> "[T]here is no cause of action in California for unjust enrichment. 'The phrase 'Unjust Enrichment' does not describe a theory of recovery, but an effect: the result of a failure to make restitution under circumstances where it is equitable to do so.'" (*Melchior v. New Line Productions, Inc.* (2003) 106 Cal.App.4th 779, 793, quoting *Lauriedale Associates, Ltd. v. Wilson* (1992) 7 Cal.App.4th 1439, 1448.) In other words, "[u]njust enrichment is 'a general principle, underlying various legal doctrines and remedies,' rather than a remedy itself." (*Melchior v. New Line Productions, Inc.*, *supra*, 106 Cal.App.4th 779, 793, quoting *Dinosaur Development, Inc. v. White* (1989) 216 Cal.App.3d 1310, 1315.) However, courts have held that a restitution or unjust enrichment cause of action may survive a demurrer where it adequately pleads a quasi-contractual claim (i.e., that there was an express contract but that it "was procured by fraud or is unenforceable or ineffective for some reason" or "is void or was rescinded." (See *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231, quoting *McBride v. Boughton* (2004) 123 Cal.App.4th 379, 388, and *Lance Camper Manufacturing Corp. v. Republic*

		Indemnity Co. (1996) 44 Cal.App.4th 194, 203; see also *Munoz v. MacMillan* (2011) 195 Cal.App.4th 648, 661 ["a typical cause of action involving [a restitution] remedy is 'quasi-contract.'"].) The court previously sustained the demurrer to the original Complaint because the Complaint failed to allege any quasi-contractual claim for which restitution is an available remedy. (See ROA #49 at p. 5.) The FAC alleges that "[o]n information and belief, Patricia convinced Alfred to make her and her children the beneficiary of his trust in place of Aaron and that the 50% of his estate would but utilized to reduce and/or satisfy any and all remaining child support arrears. Once the child support payments were paid off, the remainder of the 50% would go to Patricia and to Marlena and Jakob." (FAC, ¶ 30.) The FAC also pleads that "[a]fter Alfred's death, Patricia received distributions pursuant to the altered trust. Contrary to her representations to Alfred, she has not used the trust distributions to offset Aaron's child support arrears. Instead, she has attempted to collect additional support payments from Aaron while retaining the trust benefits for herself." (FAC, ¶ 33.) The FAC then asserts that "Patricia is 'double-dipping' on her child support payments. First, she is getting money from the Pipkin Trust that should be used to offset the support arrears and she is also demanding payments from Aaron." (FAC, ¶ 42). Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true. (See *Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) However, Plaintiff has not set forth the information on which he bases his belief that Patricia convinced the decedent to make her and her children the beneficiaries of his trust in place of Plaintiff and that 50% of his estate would but utilized to reduce and/or satisfy any and all remaining child support arrears.

		In any case, even if Plaintiff could properly allege this on information and belief, the 4th Cause of Action still fails. Here, Plaintiff is not seeking an offset of the payments he owes to Defendant (nor can he in this case, as the family law court has exclusive jurisdiction over child support matters). Rather, under this cause of action, "Plaintiff seeks a remedy of the 50% share of the trust estate received by Patricia, Marlena, and Jakob, together with all proceeds, distributions, and profits derived therefrom, for the purpose of restoring those assets to Plaintiff." (FAC, ¶ 77.) The FAC has not established a quasi-contractual claim entitling Plaintiff to a 50% share of the trust estate. At best, the FAC has alleged a basis to offset monies paid by the trust against Plaintiff's child support obligations, which is a claim that must be made in the family law court. Therefore, the court will sustain the demurrer to the 4th Cause of Action. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (*Smith v. State Farm Mutual Automobile Ins. Co.* (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (*Sanowicz v. Bacal* (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See *Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "[l]iberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

		Here, Plaintiff requests leave to amend the FAC and there is the possibility that allegations may be made to support one or more of the causes of action. Therefore, the court will exercise its discretion and grant Plaintiff one final opportunity to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See *Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendant shall give notice of this ruling.
3	**Arguello vs. Jaguar Land Rover North America, LLC** **30-2025-01521732**	<u>Motion to Strike</u> Defendant Jaguar Land Rover North America, LLC's Motion to Strike is taken OFF CALENDAR pursuant to the Notice of Withdrawal of Defendant's Motion to Strike Complaint filed June 16, 2026. (See ROA #54.)
4	**T. H. vs. AV Investment & Consultant Group, LLC** **30-2024-01404661**	<u>Motion to Consolidate</u> Defendants AV Investment & Consultant Group, LLC's; Andrew Vo's; and Ngoc Dung's Motion to Consolidate is CONTINUED to August 4, 2026 at 9:00 a.m. in Department N15. Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung are ORDERED to file and serve supplemental motion papers that include the Declaration of Walter Emil Teague III, no later than July 10, 2026. Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung are ORDERED to

		file this motion in *Tran Hung and Cu Khanh* v. *Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo*, Orange County Superior Court Case Number 30-2026-01539064 and serve this motion on all parties that have appeared in that action, no later than July 10, 2026. The parties shall file and serve any opposition or reply papers pursuant to Civil Procedure Code section 1005(b). <u>Pending Motion</u> Defendants AV Investment & Consultant Group, LLC; Andrew Vo; and Ngoc Dung move to consolidate: • *Tran Hung and Cu Khanh vs. AV Investment & Consultant Consolidate Group, LLC; Andrew Vo; and Ngoc Dung*, Orange County Superior Court Case Number 30-2024-01404661 (Earlier Action); and • *Tran Hung and Cu Khanh* v. *Allegheny Casualty Company, Westfield National Insurance Company, and Andrew Vo*, Orange County Superior Court Case Number 30-2026-01539064 (Later Action). <u>Standard for Consolidation</u> "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions". (Code Civ. Proc., § 1048, subd. (a).) The court may also "order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (*Ibid.*) California Rules of Court Rule 3.350 sets forth the requirements for a motion to consolidate: (1) A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;

(B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and

(C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

(A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;

(B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and

(C) Must have a proof of service filed as part of the motion.

(Cal. Rules of Court, rule 3.350(a).)

First, Defendants did not comply with rule 3.350(a)(1)(C), which requires that the motion be filed in each case sought to be consolidated and be served on all attorneys or nonrepresented parties in all cases sought to be consolidated.

Here, there is no evidence that this motion has been filed in the Later Action or that all of the parties in the Later Action have been served with this motion.

Further, while the motion references a declaration from attorney Walter Emil Teague III, no such declaration has been filed with the court.

Thus, there is no evidence to support Defendants' arguments that consolidation is appropriate here.

Therefore, the court will continue this hearing to allow Defendants to supplement the motion papers and to file and serve the motion papers in the Later Case.

Defendants are advised that the court may deny this motion if they fail to supplement the motion

		papers or fail to serve the motion papers on all parties in the Later Case. Defendants shall give notice of this ruling.
5	**Ayasrah vs. Fateh** **30-2023-01347912**	<u>Motion for Entry of Judgment</u> Plaintiff Rakan Ayasrah's Motion to Enforce Settlement Agreement and Enter Judgment is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Rakan Ayasrah and against Defendants Marble Boutique, LLC and Sief Fateh in the amount of $35,000 plus $5,000 in reasonable attorney's fees. Plaintiff Rakan Ayasrah is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendants Marble Boutique, LLC and Sief Fateh and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Rakan Ayasrah 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. <u>Pending Motion</u> Plaintiff Rakan Ayasrah moves for an order to enter judgment against Defendants Marble Boutique, LLC and Sief Fateh pursuant to the Settlement Agreement dated November 12, 2024. <u>Standard for Entry of Judgment</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: > The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court

		determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (*Greisman v. FCA US, LLC* (2024) 103 Cal.App.5th 1310, 1321, quoting *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809; see also *Eagle Fire and Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 457 ["section 664.6 provides an expedited procedure for enforcing the parties' settlement agreement"]; *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 ["Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement."].) Pursuant to Section 664.6, "even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, *if the parties have requested this specific retention of jurisdiction.*" (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 439, italics original.) However, "[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to the material terms of the settlement." (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732.) Thus, before granting a motion to enforce a judgment, the court must determine "whether the parties entered into a binding settlement agreement of all or part of a case." (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 911.) <u>Existence and Validity of Settlement Agreement</u> Here, Plaintiff has presented evidence that, on November 12, 2024, Plaintiff and Defendants entered into a written settlement agreement, which both parties signed. (See Decl. of Harley M. Phleger in Supp. of Pltf.'s Mot. to Enforce Settlement Agreement and Enter Judgment (Phleger Decl.), ¶ 3, Exh. A.)

		In the settlement agreement, the parties agreed that Defendants would make three $20,000.00 payments on February 15, May 15, and August 15 of 2025. (See *id*., Exh. A.) Plaintiff also submitted evidence that the parties simultaneously executed a Joint Stipulation for Future Entry of Judgment, and the parties agreed a judgment would be entered if Defendants failed to cure any breaches of the settlement agreement, or if they otherwise failed to pay the settlement. (See *id.*, ¶ 3, Exh. B.) Further, Plaintiff presented evidence that while Defendants paid $25,000 of the $60,000 required under the settlement agreement, they have not paid the remaining balance. (See *id.*, ¶¶ 4, 6-13, 15, Exh.s C, D, F-J.) The evidence shows that Defendants offered to make one final payment of $10,000 in satisfaction of the $35,000 they still owed and Plaintiff rejected this offer. (See *id.*, ¶ 14.) This evidence is sufficient to show the existence of a valid settlement agreement, that Defendants have breached that settlement agreement, and that Plaintiff is entitled to entry of judgment in the sum of $35,000. In addition, Plaintiff has shown that he is entitled to reasonable attorney's fees in the amount of $5,000. (See *id.*, ¶¶ 16-17, Exh B.) Defendants have failed to file an opposition or respond to the motion and thus, have waived any arguments regarding the motion. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will grant the motion. Plaintiff shall give notice of this ruling.
6	**Cohen vs. Grande**	Motion for Leave to File Cross-Complaint

	30-2024-01423235	Defendants Peter M. Grande’s and Wendy J. Grande’s Motion for Leave to File Cross-Complaint GRANTED. Defendants Peter M. Grande’s and Wendy J. Grande are ORDERED to file the proposed Cross-Complaint attached as Exhibit 6 to the Declaration of Lance D. Orloff within 15 days of this ruling and to serve the Cross-Complaint upon all named Cross-Defendants within 60 days of this ruling. <u>Pending Motion</u> Defendants Peter M. Grande and Wendy J. Grande move for leave to file a Cross-Complaint. <u>Standard for Leave to File Cross-Complaint</u> Code of Civil Procedure Section 426.50 provides that A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action. (Code Civ. Proc., § 426.50.) There is a liberal policy regarding granting leave to file cross-complaints. (See *Align Technology, Inc. v. Bao Tran* (2009) 179 Cal.App.4th 949, 967; Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial (The Rutter Group 2022) ¶ 6:557.) If the proposed cross-complaint is permissive, a party may file a cross-complaint “at any time before the court has set a date for trial.” (Code Civ. Proc., § 428.50, subd. (b).) However, if a party fails to file a permissive cross-complaint before the date set for trial, the party

		“shall obtain leave of court to file any cross-complaint,” which may be granted “in the interests of justice.” (Code Civ. Proc., § 428.50(c).) On the other hand, if the proposed cross-complaint is compulsory, leave must be granted so long as defendant is acting in good faith. (Code Civ. Proc., § 426.50; Weil & Brown, Cal. Prac. Guide: Civ. Proc. before Trial (The Rutter Group 2022) ¶ 6:555.) A compulsory cross-complaint is a cross-complaint that is asserted against the plaintiff and related to the subject matter of the complaint. (Code Civ. Proc., § 426.30.) A cross-complaint is “related” to the complaint if it arises out of the same transaction, occurrence, or series of transactions or occurrences as the complaint. (Code Civ. Proc., § 426.10(c).) All other cross-complaints are permissive cross-complaints. In order to be related, there does not need to be “’an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them.’ At the heart of this approach is the question of duplication of time and effort; i.e., are any factual or legal issues relevant to both claims?” (*Currie Medical Specialties, Inc. v. Bowen* (1982) 136 Cal.App.3d 774, 777, citations omitted, quoting *United Artists Corp. v. Masterpiece Prods.* (2d Cir. 1955) 221 F.2d 213, 216.) Claims that are only loosely related in that they involve some of the same parties and the same matter, directly or indirectly, are not logically related if the trial of the claims does not involve a duplication of time and effort due to the fact that there are factual and legal issues that are relevant to both claims. (See *ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd.* (2016) 5 Cal.App.5th 69, 84.) Here, the proposed Cross-Complaint is compulsory because it relates to the same set of facts as the Complaint and Defendants are now claiming an interest in the same property as Plaintiff does in the Complaint. Further, Defendants provide evidence that they discovered the theories for affirmative relief after Plaintiff’s deposition and that they now wish to

		assert claims seeking that relief. (See Decl. of Lance D. Orloff (Orloff Decl.), ¶¶ 7-8, Exh.s 4-5.) While Plaintiff contend that Defendants are acting in bad faith, Plaintiff offers no admissible evidence of this contention. Defendant also argues that the Cross-Complaint is unnecessary, incomprehensible, duplicative, and "would crumble upon demurrer." However, "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) Therefore, the court will grant the motion. Defendants shall give notice of this ruling.